

## CASE SUMMARY

## State (BSES YPL) v. Altaf

SC No. 840/2023 | FIR No. 478/2021, PS Seelampur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

|                  |                                                                                                                                                                                                                                                    |
|------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| COURT            | Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi                                                                                                                                                  |
| JUDGE            | Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)                                                                                                                                                                                          |
| DATE OF JUDGMENT | 15 April 2026 (date of inspection / offence: 7 October 2021)                                                                                                                                                                                       |
| PARTIES          | State (BSES Yamuna Power Ltd.) v. Altaf S/o Chand Miya, R/o H. No. 64, 2nd Floor, Gali No. 3, Jafrabad, Seelampur, Delhi-110053                                                                                                                    |
| STATUTES INVOKED | Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007                  |
| RESULT           | <b>Convicted under Section 135, Electricity Act, 2003</b> — notwithstanding that the theft bill had been settled, the settlement amount deposited, and an NOC issued by the complainant company. Matter posted for hearing on quantum of sentence. |

### CHARGE BEFORE THE COURT

Whether the accused Altaf dishonestly abstracted electricity at his unmetered second-floor premises through a two-core black wire connected from a Distribution Box of BSES YPL, so as to attract Section 135(1)(a) of the Electricity Act, 2003; whether he discharged the onus cast by the third proviso to Section 135(1); and what effect, if any, his settlement of the civil liability — complete with deposit and an NOC from the company — had on the criminal charge.

### FACTS

On 7 October 2021 at about 6.35 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. R.B. Yadav (Assistant Manager) inspected the residential premises at H. No. 64, 2nd Floor, Gali No. 3, Jafrabad, Delhi. No electricity meter was installed; the premises drew supply through a two-core black aluminium wire connected from a Distribution Box of BSES YPL. Per the complaint the accused was present at the premises; in evidence, PW-3 deposed that a person present at the spot disclosed himself as the accused's representative and that the accused was the user of the electricity. The connected load was 2.370 KW, used for domestic purposes. Sh. Mohsin Ali videographed the proceedings; an Inspection Report, Load Report and Seizure Memo were prepared at the spot. The company assessed a theft demand of Rs. 50,979/-, which initially went unpaid; on its Authorised Officer's complaint FIR No. 478/2021 was registered at PS Seelampur.

Investigation passed from HC Jugal Kishore to HC Vikas, who served the Section 41A Cr.P.C. notice, recorded a disclosure statement, and seized the accused's Aadhaar card and copies of the ownership documents of the premises.

Notice under Section 251 Cr.P.C. was given on 11 January 2024; the accused pleaded not guilty. The prosecution examined four witnesses: PW-1 ASI Jugal Kishore (first IO; proved the FIR), PW-2 HC Vikas (second IO; proved the site plan, notices, interrogation report, Aadhaar and ownership documents, and Pabandinama), PW-3 R.B. Yadav (team head; proved the videography CD, inspection report, load report, seizure memo, theft bill and complaint, and identified the seized half-metre black aluminium wire, Ex.P1) and PW-4 Mohsin Ali (videographer, proving the video and a Section 65B certificate, Ex.PW4/A). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication, leading no defence evidence. His counsel submitted that the theft bill had been settled, the amount deposited, and an NOC issued by the company.

## REASONING OF THE COURT

### HEADNOTE

Settlement of the theft bill — even when the amount is deposited and the licensee issues a No-Objection Certificate — neither bars nor blunts the criminal charge under Section 135; the Court treated the settlement as conduct corroborating the theft. Direct hooking from the licensee’s distribution box to unmetered premises engages Section 135(1)(a), and the compulsory third-proviso presumption convicts where the accused leads no evidence of a lawful, metered source.

**Section 135(1)(a) was engaged by the distribution-box tap.** The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the two-core black wire connected from the BSES YPL Distribution Box to the unmetered second-floor premises as a clause (a) connection with the licensee’s works. On proof of that artificial means, the third proviso’s presumption of dishonest use arose.

**The inspection stood proved through unshaken, 65B-supported evidence.** PW-3 (team head) and PW-4 (videographer) deposed consistently to the absence of any meter, the wire from the distribution box, and the 2.370 KW domestic load; the videography was proved with a Section 65B certificate (Ex.PW4/A), the seized half-metre wire was identified in court, and the load report’s correctness was never challenged. PW-3’s evidence was that a person present had disclosed himself as the accused’s representative, the accused being the user; neither that representative’s identity nor the identity of the premises in the video was disputed. The suggestion of false implication was denied and left unsubstantiated.

**Two successive IOs did not break the investigative chain.** The first IO proved the FIR; the second proved the site plan, notices, interrogation report, the accused’s Aadhaar and the ownership documents of the premises seized during investigation. Nothing turned on the transfer of investigation, and the documentary chain from complaint to charge-sheet remained intact.

**The absence of a public witness did not weaken the prosecution.** No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

**Settlement, deposit and even an NOC could not answer the criminal charge.** Following *Neeraj Dutt* and *Hiten P. Dalal* on the compulsory presumption and its rebuttal standard, the Court noted the accused led no defence evidence, claimed no Genset, and produced no paid bills (*Mukesh Rastogi*; Section 106 onus). His settlement of the Rs. 50,979/- bill with deposit and NOC was reasoned the same way as in the companion cases: had the claim been false, he would have protested rather than paid — so the settlement corroborated the theft, and the criminal liability under Section 135 survived the civil closure. The presumption stood unrebutted.

## INTERPRETATION OF THE ELECTRICITY STATUTES

### ELECTRICITY ACT, 2003

#### Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a wire connected from the licensee’s distribution box as satisfying the requirement of dishonest intention.

#### Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

### DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 50,979/- assessment measured the theft and required no separate proof as an ingredient.

## HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises at the time of inspection and that Altaf was found indulging in direct theft of electricity through illegal wires — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption, and his settlement of the civil liability did not answer the criminal charge. Altaf is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

## SIGNIFICANCE

The clearest statement in this set that buying peace with the discom does not buy peace with the criminal law. Five propositions stand out:

- **An NOC after settlement is not immunity.** Payment of the settled bill and issuance of a No-Objection Certificate by the licensee closed the civil account only; the Section 135 prosecution proceeded to conviction regardless.
- **Settlement conduct still corroborates guilt.** As in the companion cases, the readiness to settle — rather than protest a supposedly false bill — was itself weighed against the accused.
- **A representative’s presence sufficed on the facts.** The person at the spot identified himself as the accused’s representative, and the unchallenged videography tied the accused, as user, to the premises.

- **Successive IOs are unobjectionable.** Transfer of the investigation midway, with each IO proving his own documents, left no gap the defence could exploit.
- **The unmetered-premises template held.** No meter, a distribution-box tap, an unexplained running load, no Genset, no paid bills — the compulsory presumption (*Neeraj Dutt*; *Hiten P. Dalal*; *Mukesh Rastogi*) did the rest.

## CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

| CASE                                                                                            | PRINCIPLE CITED FOR                                                                                                                                                                     | TREATMENT |
|-------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <i>Punjab State Electricity Board v. Ashwani Kumar</i><br>2010 (7) SCC 569                      | An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.        | Relied on |
| <i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i><br>Delhi HC, CrI. A. 1060/2010<br>(22.12.2010) | Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.                                 | Relied on |
| <i>Neeraj Dutt v. State</i><br>SLP(CrI.) 6497/2020                                              | “Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.                                                                    | Relied on |
| <i>Hiten P. Dalal v. Bratindranath Banerjee</i><br>2001 (6) SCC 16                              | A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.                                   | Relied on |
| <i>Mukesh Rastogi v. North Delhi Power Ltd.</i><br>2007 (99) DRJ 108                            | The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer. | Relied on |

*This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.*